SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER	PAGE 1 OF
	53

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			70ZL9527QDL950002	10/30/2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	Suchy, Mrs. Lauren S		11/24/2026 12:00 PM

9. ISSUED BY CODE 70ZL95

70ZL95 LOG-95 Regional Contracting Branch NE
USCG - LOG-95 Regional Contracting Northeast, 300
East Main Street, Suite 900
Norfolk, VA, 23510, US

10. THIS ACQUISITION IS
- ☐ UNRESTRICTED OR ☐ SET ASIDE: 100 % FOR:
- ☒ SMALL BUSINESS
- ☐ HUBZONE SMALL BUSINESS
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 562111

SIZE STANDARD: $47 Million

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING / 14. METHOD OF SOLICITATION
☐ SEE SCHEDULE		☐	☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO CODE
See Schedule

16. ADMINISTERED BY CODE 70ZL95
Same as Issuing Office

17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE

TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY CODE Z51800

USCG FINANCE CENTER
FINANCE CENTER USCG, 1430A KRISTINA WAY
CHESAPEAKE, VA, 23326-1000, US

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELPHONE NUMBER OF AUTHORZED GOVERNMENT REPRESENTATIVE
	32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

STOCK RECORD (S/R)		40. PAID BY
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE RECEIVED *(MM/DD/YYYY)*	42d. TOTAL CONTAINERS

REQUEST FOR QUOTATION

Refuse and Recycling Services located at U.S. Coast Guard Base Cape Cod and Harwich Housing, MA

Solicitation Number: 70ZL9527QDL950002

Locations of Performance: U.S. Coast Guard (USCG) Base Cape Cod (Buzzards Bay, MA) & USCG Housing Harwich (Harwich, MA)

Issuing Contracting Activity: United States Coast Guard (USCG), Operational Logistics Command (LOGCOM)

Points of Contact:
Contracting Officer – Lauren Suchy, Lauren.S.Suchy@uscg.mil

Contract Specialist – Axel Doody, Axel.F.Doody@uscg.mil

SECTION 1 – GENERAL INFORMATION

1.1 Combined Synopsis/Solicitation Notice

This is a combined synopsis/solicitation for commercial services prepared in accordance with the format in Federal Acquisition Regulation (FAR) Subpart 12.6, as streamlined by the Revolutionary FAR Overhaul (RFO) and supplemented with additional information included in this notice.

This announcement constitutes the only solicitation; quotes are being requested, and a separate written solicitation will not be issued. Solicitation number 70ZL9527QDL950002 is issued as a Request for Quotation (RFQ) under FAR Part 12 (Acquisition of Commercial Products and Commercial Services). This solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2026-01, effective March 13, 2026.

The USCG is procuring Refuse and Recycling Collection and Disposal services at Base Cape Cod, MA and USCG owned housing in Harwich, MA.

1.2 Small Business Set-Aside & Industry Classification

This acquisition is a 100% Total Small Business Set-Aside under FAR Subpart 19.5. Only small business concerns meeting the size standard under the assigned North American Industry Classification System (NAICS) code are eligible for award.

- NAICS code: 562111, Solid Waste Collection.
- Small Business Size Standard: $47.0 Million.
- Product Service Code (PSC): S205, Housekeeping – Trash/Garbage Collection.

- Limitations on Subcontracting (FAR 52.219-14): By submitting a quote, the small business quoter certifies that at least 50% of the cost of contract performance incurred for personnel shall be expended for employees of the concern or employees of other similarly situated small business entities.

1.3 Contract Type & Delivery Terms

- Contract Type: Single-award, Firm-Fixed-Price (FFP) commercial service contract.

- FOB Point: FOB Destination. All prices quoted must include all transportation, equipment, container drop-off/pickup, hauling, tipping, and certified disposal fees.

- Period of Performance: One (1) base year of twelve (12) months with four (4) consecutive twelve-month option periods, plus the potential for up to a six-month extension under FAR 52.217-8:

  - **Base Period:** 01 December 2026 through 30 November 2027
  - **Option Period 1:** 01 December 2027 through 30 November 2028
  - **Option Period 2:** 01 December 2028 through 30 November 2029
  - **Option Period 3:** 01 December 2029 through 30 November 2030
  - **Option Period 4:** 01 December 2030 through 30 November 2031

1.4 Site Visit

An optional site visit will occur on **16 November 2026 at 9:00 AM Eastern Time** at USCG Base Cape Cod.

Interested attendees must RSVP with the following information five (5) business days in advance for gate access clearance. Submit the following attendee information to Axel.F.Doody@uscg.mil by **09 November 2026 at 12:00 PM Eastern Time:**

1. RFQ number
2. Name
3. Phone number
4. Company
5. Copy of Real ID

A limit of two (2) personnel are authorized per company. Location details will be sent to approved attendees prior to the site visit. The Government is not responsible for costs associated with the Site Visit.

1.5 Questions

It shall be the obligation of the quoter to exercise due diligence to discover and bring to the attention of the Government any ambiguities, inconsistencies, or concerns regarding the information in this solicitation. All questions and concerns regarding this solicitation shall be submitted in writing via email to the Contract Specialist at Axel.F.Doody@uscg.mil with copy to Contracting Officer Lauren.S.Suchy@uscg.mil.

All questions or concerns must be submitted by **18 November 2026 at 12:00 PM Eastern Time**. Quoters shall reference solicitation number 70ZL9527QDL950002 and provide clear detail so the Government can easily respond. All questions/concerns will be compiled and addressed via an amendment to the RFQ.

SECTION 2 – DESCRIPTION OF REQUIREMENTS

The contractor shall provide all labor, supervision, transportation, equipment, contractor-furnished containers and totes, disposal, recycling, permits, and incidental services necessary to collect, transport, recycle, and dispose of refuse generated at USCG Base Cape Cod, Massachusetts, and USCG-owned housing in Harwich, Massachusetts.

Services include scheduled collection of municipal solid waste and single-stream recycling from Base Cape Cod support/commercial facilities and residential housing, as well as contractor-furnished container and tote maintenance, cleaning, repair, replacement, and relocation. The contractor shall also provide on-call 30-cubic-yard bulk-refuse-container services, including delivery, placement, removal, transportation, disposal, and replacement of containers, when directed by the Government.

The contractor shall perform collection within the required service windows; correct missed pickups; remove spillage; maintain containers and vehicles in safe, clean, serviceable condition; dispose of refuse at compliant facilities; recycle recyclable materials at permitted facilities; and provide required disposal documentation and post-award deliverables.

All services shall be performed in accordance with the attached Performance Work Statement (PWS) and its attachments. In the event of any conflict between this summary and the PWS, the PWS shall govern.

Procuring Contracting Office: The U.S. Department of Homeland Security, U.S. Coast Guard, LOGCOM 95, 300 East Main Street, Suite 900, Norfolk, VA 23510-9112 is authorized to order supplies/services stated herein. Communications pertaining to contractual matters shall be addressed to one of the Contracting Officers (KO) listed below. Changes in, or deviations from, the statement of work or terms and conditions of the contract shall not be affected without written modification to the contract as executed by a USCG LOGCOM-95 Contracting Officer. Point of Contact: Serves as the point of contact between the Contractor and the Contracting Officer(s); however, this person does not have a warrant that provides the authority to contractually commit the Government or to modify any terms and conditions of a contract.

Point of Contact: Contract Specialist: Axel Doody
Email: Axel.F.Doody@uscg.mil

SECTION 3 – INSTRUCTIONS TO QUOTERS (FAR 52.212-1 ADDENDUM)

The provision at FAR 52.212-1, Instructions to Offerors—Commercial Products and Commercial Services, applies to this acquisition, as tailored by this addendum.

3.1 Quote Submission & Deadline

Submission Deadline: Quotes must be received via email no later than **24 November 2026 at 12:00 PM Eastern Time**.

Submission Method: Submit quotations by email to the following Government Points of Contact:

Contract Specialist: Axel Doody, Email: Axel.F.Doody@uscg.mil
Contracting Officer: Lauren Suchy, Email: Lauren.S.Suchy@uscg.mil

Subject Line Format: QUOTE: 70ZL9527QDL950002 - BCC & Harwich Refuse & Recycling - [Vendor Name]

Late submissions will not be considered unless otherwise permitted by an applicable solicitation provision.

Quotes must be valid for 120 calendar days.

3.2 System for Award Management (SAM) Registration

Quoters must be actively registered in SAM.gov under NAICS 562111 with complete Representations and Certifications prior to award. Quoters must state their Unique Entity Identifier (UEI), business address, and primary point of contact in their quote.

3.3 Structure of Quote Submission

Quotes shall be submitted in the following three electronic volumes:

1. Volume I – Technical Capability
2. Volume II – Past Performance
3. Volume II – Price

The Government will evaluate only the information submitted in the quote, except that the Government may use information available in SAM.gov or other appropriate sources when making a responsibility determination.

Volume I – Technical Capability

The quoter shall organize Volume I by Subfactors 1A through 1C. The narrative portion shall not exceed **ten (10) pages**. Equipment lists, vehicle specifications, permits, licenses,

disposal/recycling-facility documentation, facility acceptance letters, letters of commitment, and account confirmations do not count toward the page limit.

Subfactor 1A – Equipment and Container Capability:
The quoter shall demonstrate the capability to furnish, deploy, operate, maintain, and replace, as necessary, all equipment and containers required by the PWS at contract start.

The quoter shall provide:

1. A list of proposed refuse and recycling collection vehicles, including vehicle type and general capacity;
2. A description of primary and backup vehicle capability;
3. A description of the quoter's ability to furnish and maintain all PWS-required commercial containers, residential totes, and 30-cubic-yard bulk containers; and
4. A statement that all collection vehicles will comply with applicable PWS vehicle standards, including watertight refuse bodies and applicable Department of Transportation and Occupational Safety and Health Administration requirements.

Standard for Acceptability: The submission demonstrates the quoter has, or will have by contract start, sufficient compliant vehicles, containers, totes, and bulk-container capability to meet all PWS requirements.

Subfactor 1B – Collection and Response Capability:
The quoter shall provide a concise narrative, describing its capability to:

1. Perform scheduled commercial and residential collection services within the days, hours, frequencies, and locations specified in the PWS and attachments;
2. Correct missed pickups within 24 hours after discovery or notification;
3. Immediately remove collection-related spills and return containers to their proper condition and location;
4. Provide on-call 30-cubic-yard bulk-container service in accordance with the PWS turnaround requirements; and
5. Maintain continuity of service during vehicle breakdowns, staffing shortages, inclement weather, or other foreseeable disruptions.

Standard for Acceptability: The submission demonstrates a practical and credible capability to meet the collection, missed-pickup, spill-cleanup, and bulk-container requirements of the PWS.

Subfactor 1C – Disposal, Recycling, and Regulatory Capability:

The quoter shall identify its proposed refuse disposal facility or facilities and recycling facility or facilities.

The quoter shall provide:

1. The name and location of each proposed refuse disposal and recycling facility;
2. Evidence that the proposed facilities are appropriately licensed or permitted for the intended services; and
3. Evidence that the quoter has access, or will have access before performance begins, to the proposed facilities.
4. A statement that the quoter holds, or will obtain before performance begins, all permits, licenses, and authorizations required for refuse hauling, transportation, disposal, and recycling.

Acceptable evidence may include a current disposal agreement, facility acceptance letter, account confirmation, permit, license, letter of commitment, or other documentation demonstrating the quoter's ability to lawfully perform the disposal and recycling requirements.

Standard for Acceptability: The submission demonstrates the quoter's ability to lawfully transport, dispose of, and recycle materials in accordance with the PWS and applicable requirements.

Volume II – Past Performance

The quoter shall submit up to three (3) references for recent and relevant refuse, recycling, waste-hauling, or comparable collection and disposal contracts performed within the past five (5) years.

For each reference, provide:

1. Procuring Agency or Commercial Customer;
2. Contract number and title of contract;
3. Contract award date;
4. Period of performance;
5. Total dollar value;
6. Point of contact name, telephone number, and email address;
7. Brief description of services and how the referenced work is similar in scope, complexity, and magnitude to this requirement.

A quoter without relevant past performance shall receive a Neutral past performance determination. A Neutral determination will be treated as Acceptable for purposes of this solicitation.

Volume III – Price

The quoter shall complete and submit Attachment 10, Schedule B, and shall provide a price narrative explaining the methodologies, calculations, and assumptions used in developing the prices.

The quoter shall:

1. Complete all required pricing fields;
2. Provide unit prices and extended prices for each Contract Line Item Number (CLIN) and complete this for each period of performance;
3. Submit prices in whole U.S. dollars only, without cents or decimal values;
4. Ensure extended prices equal the applicable unit price multiplied by the stated quantity;
5. Include all costs necessary for complete PWS performance; and
6. Not alter Government-provided CLIN descriptions, units, quantities, or periods of performance.

Failure to price all required priced CLINs may render the quotation ineligible for award.

SECTION 4 – EVALUATION CRITERIA & BASIS FOR AWARD (FAR 52.212-2 ADDENDUM)

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services, applies to this acquisition, as tailored by this addendum:

4.1 Basis for Award

In accordance with the Revolutionary FAR Overhaul (RFO) Part 12.203(b), the Government intends to award a Firm Fixed Price (FFP) contract to the responsible small business quoter whose quote conforms to the RFQ, is the lowest-priced, is determined to be technically acceptable, and demonstrates acceptable past performance.

To be eligible for award, the quote must:

1. Receive an Acceptable determination under Volume 1 – Technical Acceptability;
2. Receive an Acceptable determination under Volume 2 – Past Performance; and
3. Offer the lowest Total Evaluated Price under Volume 3 – Price.

The lowest priced quote will be evaluated on Technical and Past Performance acceptability. If it is found to be acceptable, an award will be made. If it is found to be unacceptable, the next lowest price will be evaluated. This process will continue until an acceptable offer is identified; not all offers will be evaluated.

4.2 Evaluation Information

Volume I – Technical Capability Evaluation

Technical Capability will be evaluated on an Acceptable/Unacceptable basis. To receive an Acceptable determination, the quoter shall demonstrate the capability to perform all material PWS requirements. This will be demonstrated by submitting all requested information in Volume I and meeting the Standard for Acceptability for Subfactors 1A, 1B, and 1C.

The subfactors are not weighted, scored, or ranked. A quotation must be determined Acceptable under each subfactor in Volume I to receive an overall Acceptable determination. A quotation will be determined Unacceptable if it fails to address a subfactor, takes exception to a material PWS requirement, or provides insufficient or inconsistent information to demonstrate required capability. An Unacceptable quotation will not be eligible for award.

Volume II – Past Performance Evaluation

Past Performance will be evaluated on an Acceptable/Unacceptable basis.

Only relevant past performance will be evaluated. The evaluation will be based on the information received by Past Performance references, the Contractor Performance Assessment Report System (CPARS), and other relevant sources, to obtain contractor past performance information. Although the Government will consider data obtained from other sources, the burden of providing thorough and complete past performance information rests with the quoter. Additionally, the Government will only consider relevant Past Performance as defined by similar in nature, scope, and complexity.

A quoter with no record of relevant past performance will receive a Neutral determination, which is evaluated as Acceptable.

An Acceptable determination reflects past performance information that provides a reasonable expectation of successful performance.

An Unacceptable determination reflects relevant adverse past performance information that creates substantial doubt regarding the quoter's ability to successfully perform the required services. The Government will consider the relevance, recency, severity, and corrective actions associated with any adverse past performance information.

A quote determined Unacceptable under Volume II will not be eligible for award.

Volume III – Price Evaluation

The Government will evaluate price in accordance with (IAW) RFO Part 12.204. For preparing a price quote, the contractor shall assume that the basic period of performance will be one 12-month base period, four 12-month option periods, and a 6-month optional extension pursuant to FAR Clause 52.217-8. The Government will evaluate the price quote for the base year and all option periods.

The Government will evaluate Price for completeness, mathematical accuracy, reasonableness, and material unbalancing. Price will be evaluated using the completed Attachment 10, Schedule B, and the price narrative. Optional periods will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate quotes for award purposes by adding the total price for all ordering periods to the total price for the basic requirement. The Government may determine that a quote is unacceptable if the ordering prices are significantly unbalanced. Evaluation of ordering periods shall not obligate the Government to exercise the additional ordering period(s).

The estimated quantities for the not-to-exceed CLINs are used for evaluation only. The Government will order and pay only for actual, authorized services performed under the contract.

Evaluation of options does not obligate the Government to exercise options.

The Government may evaluate any and all information submitted by the quoter to support the reasonableness of prices proposed. The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer. Additionally, the government may request quoter's to submit additional information/data to support price reasonableness such as copies of paid invoices for the same or similar items or uncertified cost and pricing data. Failure to submit the requested information may result in disqualification of the submitted quote. Additionally, ordering activities are strongly encouraged to verify that any additional requirements pertaining to contracting for acquisition support services are met.

The Government will evaluate its Option to Extend Services (see FAR Clause 52.217-8) by adding six months of the quoter's final option period price to the quoter's total price. Quoters are required to provide price for a 12-month base period and four option periods only. Quoters shall not submit a price for the potential six-month extension of services period. The Government may choose to exercise the Extension of Services at the end of any performance period (base or option periods), utilizing the rates of that performance period.

SECTION 5: SERVICE CONTRACT LABOR STANDARDS (WAGE DETERMINATION)

This acquisition is subject to the Service Contract Labor Standards (41 U.S.C. Chapter 67).

Applicable Wage Determination: U.S. Department of Labor Wage Determination No. 2015-4045 (Revision 37).

Locality: Massachusetts Counties of Barnstable (Bourne, Harwich, Falmouth, Sandwich, Mashpee, etc.).

SECTION 6: APPLICABLE PROVISIONS AND CLAUSES (FAR 12.603(c)(2)(viii)–(xii))

6.1 Provisions Incorporated by Reference

- **52.252-1: Solicitation Provisions Incorporated by Reference (Feb 1998)**

  This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The quoter is cautioned that the listed provisions may include blocks that must be completed by the quoter and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the quoter may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

  (End of Provision)

- FAR 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (SEPT 2024)
- FAR 52.204-7, System for Award Management (OCT 2018)
- FAR 52.204-16, Commercial and Government Entity Code Reporting (AUG 2020)
- FAR 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations-Representation (NOV 2025)
- FAR 52.209-7, Information Regarding Responsibility Matters (OCT 2018)
- FAR 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Nov 2025)
- FAR 52.217-5, Evaluation of Options (NOV 2025)
- FAR 52.219-1, Small Business Program Representations (FEB 2024)
- FAR 52.219-2, Equal Low Bids
- FAR 52.229-11, Tax on Certain Foreign Procurements – Notice and Representation (JUL 2025)
- FAR 52.237-1, Site Visit (APR 1984)

6.2 Provisions Incorporated by Full Text

- **52.204-8 Annual Representations and Certifications. (JAN 2025) (DEVIATION FEB 2025)**

  (a) (1) The North American Industry Classification System (NAICS) code for this acquisition is 562111 Solid Waste Collection.

(2) The small business size standard is $47.0 Million.
(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition—
(i) Is set aside for small business and has a value above the simplified acquisition threshold; (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) (1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies. (2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation.

The Offeror shall indicate which option applies by checking one of the following boxes: (i) □ Paragraph (d) applies. (ii) □ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated: (i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless–
(A) The acquisition is to be made under the simplified acquisition procedures in part 13;
(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
(C) The solicitation is for utility services for which rates are set by law or regulation.
(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.
(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations. (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management. (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that- (A) Are not set aside for small business concerns; (B) Exceed the simplified acquisition threshold; and (C) Are for contracts that will be performed in the United States or its outlying areas. (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations. (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations Representation. (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold. (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all

solicitations. (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government. (xi) 52.215 6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government. (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). FAR Class Deviation 25-03 Page 6 of 12 (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard. (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard. (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
(xiv) Reserved
(xv) Reserved.
(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.
(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA–designated items. (xix) Reserved.
(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.
(A) If the acquisition value is less than $50,000, the basic provision applies.
(B) If the acquisition value is $50,000 or more but is less than $100,000, the provision with its Alternate II applies.
(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.)
This provision applies to solicitations containing the clause at 52.225-3. FAR Class Deviation 25-03 Page 7 of 12 (A) If the acquisition value is less than $50,000, the basic provision applies.
(B) If the acquisition value is $50,000 or more but is less than $100,000, the provision with its Alternate II applies.
(C) If the acquisition value is $100,000 or more but is less than $102,280, the provision

with its Alternate III applies.
(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.
(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan Certification. This provision applies to all solicitations.
(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation.
This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions. (2)

The following representations or certifications are applicable as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]
__ (i) 52.204-17, Ownership or Control of Offeror.
__ (ii) 52.204-20, Predecessor of Offeror.
__ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.
__ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
__ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
__ (vi) 52.227-6, Royalty Information.
__ (A) Basic. __ (B) Alternate I. __
(vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.
FAR (d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through https://www.sam.gov. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

- **52.209-7 Information Regarding Responsibility Matters (Nov 2025)**
(a) Definitions. As used in this provision— Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables. Federal contracts and grants with total value greater than $10,000,000 means— (1) The total value of all current, active contracts and grants, including all priced options; and (2) The total value of all current, active orders including all priced options under indefinite delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules). Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).
(b) The quoter □ has □ does not have current active Federal contracts and grants with total value greater than $10,000,000.
(c) If the quoter checked "has" in paragraph (b) of this provision, the quoter represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information: (1) Whether the quoter, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the quoter of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions: (i) In a criminal proceeding, a conviction. (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more. (iii) In an administrative proceeding, a finding of fault and liability that results in– (A) The payment of a monetary fine or penalty of $5,000 or more; or (B) The payment of a reimbursement, restitution, or damages in excess of $100,000. (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision. (2) If the quoter has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the quoter has provided the requested information with regard to each occurrence.
(d) The quoter shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7)

- **FAR 52.212-1, Instructions to Offerors—Commercial Products and Commercial Services (Aug 2025) (DEVIATION 25-21)** ***(Tailored via Section 3 Addendum)***

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;
(2) The name, address, telephone number of the Offeror;
(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for **120** calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a post award debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

- **FAR 52.212-2, Evaluation—Commercial Products and Commercial Services (Aug 2025) (DEVIATION 25-21)**

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers: **See Addendum in Section 4**.

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

- **FAR 52.233-2, Service of Protest (Nov 2025)**

(a) Protests, (as defined in section 33.102) that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), Email protests@uscg.mil and copy the contracting officer at Lauren.S.Suchy@uscg.mil (b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

- **52.240-90 Security Prohibitions and Exclusions Representations and Certifications. (DEVIATION 20-05) (NOV 2025)**

  (a) Definitions. As used in this provision—

  Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive, compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240- 91, Security Prohibitions and Exclusions.

  Business operations mean engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

  Marginalized populations of Sudan means—

  (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and
  (2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

  Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

  (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
  (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
  (3) Consist of providing goods or services to marginalized populations of Sudan;
  (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
  (5) Consist of providing goods or services that are used only to promote health or education; or
  (6) Have been voluntarily suspended

  Sensitive technology—

  (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or
(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) Covered telecommunications and video surveillance. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(2) FASCSA Orders.
(i) The Offeror shall search in SAM for the phrase "FASCSA order" for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204 1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation (c) Covered telecommunications equipment or services representations. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) FASCSA Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an

internal or third-party audit.

(e) Sudan certification. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) Iran Representation and Certifications.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $10,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource center/sanctions/SDN-List/Pages/default.aspx)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225- 6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material. (iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) Disclosure.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;
(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;
(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);
(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);
(vii) Whether alternative products or services are available that would be compliant with the prohibition;
(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;
(B) Model number, OEM number, manufacturer part number, or wholesaler number; and
(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:
(i) In the event the Contractor identifies covered article provided to the Government during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report, in writing, via email, to the Contracting Officer, Contracting Officer's Representative, and the Enterprise Security Operations Center (SOC) at NDAA_Incidents@hq.dhs.gov, with required information in the body of the email. In the case of the Department of Defense, the Contractor shall report to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Enterprise SOC, Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) and Contracting Officer's Representative(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report

provided at https://dibnet.dod.mil.
(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.
(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information. (h) Executive agency review of disclosures. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

- **FAR 52.252-5, Authorized Deviations in Provisions**

Authorized Deviations in Provisions (Nov 2020)
(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

6.3 Contract Clauses Incorporated By Reference

The following terms and conditions apply to this solicitation. Additional information can be obtained through www.acquisition.gov. The following Clauses are incorporated by reference:

- FAR 52.203-6, Restrictions on Subcontractor Sales to the Government – Alternate I
- FAR 52.203-17, Contractor Employee Whistleblower Rights – DHS USCG Deviation 14-01, Revision 1
- FAR 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements
- FAR 52.204-13, System for Award Management Maintenance (NOV 2025)
- FAR 52.204-18, Commercial and Government Entity Code Maintenance (AUG 2020)
- FAR 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023)
- FAR 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (NOV 2025)
- FAR 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (NOV 2025)

- FAR 52.219-6, Notice of Total Small Business Set-Aside (NOV 2025)
- FAR 52.219-28, Post-Award Small Business Program Rerepresentation (FEB 2024)
- FAR 52.222-3, Convict Labor (JUN 2003)
- FAR 52.222-35, Equal Opportunity for Veterans
- FAR 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020)
- FAR 52.222-37, Employment Reports on Veterans
- FAR 52.222-40, Notification of Employee Rights Under the National Labor Relations Act
- FAR 52.222-41, Service Contract Labor Standards (AUG 2018)
- FAR 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014)
- FAR 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018)
- FAR 52.222-50, Combating Trafficking in Persons (NOV 2021)
- FAR 52.222-54, Employment Eligibility Verification
- FAR 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (OCT 2023) (DHS Deviation 24-02).
- FAR 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022)
- FAR 52.222-90, Addressing DEI Discrimination by Federal Contractors.
- FAR 52.223-10, Waste Reduction Program (MAY 2011)
- FAR 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018)
- FAR 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023)
- FAR 52.228-5, Insurance—Work on a Government Installation (JAN 1997)
- FAR 52.232-18, Availability of Funds
- FAR 52.232-19, Availability of Funds for the Next Fiscal Year
- FAR 52.232-33, Payment by Electronic Funds Transfer – System for Award Management
- FAR 52.233-3, Protest After Award
- FAR 52.233-4, Applicable Law for Breach of Contract Claim
- FAR 52.237-2, Protection of Government Buildings, Equipment, and Vegetation (APR 1984)
- FAR 237-3, Continuity of Services
- FAR 52.240-91, Security Prohibitions and Exclusions (Alt I)
- FAR 52.244-6, Subcontracts for Commercial Products and Commercial Services
- FAR 52.245-9, Use and Charges
- FAR 52.246-4, Inspection of Services-Fixed-Price
- FAR 52.249-2, Termination for Convenience of the Government (Fixed-Price)
- FAR 52.249-8, Default (Fixed-Price Supply and Service)
- HSAR 3052.204-71, Contractor Employee Access
- HSAR 3052.212-70, Contract Terms and Conditions Applicable to DHS Acquisition of Commercial Items (JUL 2023)
- HSAR 3052.222-70, Strikes or Picketing Affecting Access to a DHS Facility (DEC 2003)
- HSAR 3052.223-90, Accident and Fire Reporting (DEC 2003)
- HSAR 3052.240-72, Safeguarding of Controlled Unclassified Information

- HSAR 3052.242-72, Contracting Officer's Representative (DEC 2003)
- HSAR 3052.249-90, Contract Termination

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals— Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Components shall not consider or use these representations.

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at https://acquisition.gov/browsefar.

6.4 Contract Clauses Incorporated By Full Text

- **52.203-17 Contractor Employee Whistleblower Rights (April 2024) (DHS-USCG DEVIATION 14-01, Revision 1)**
  (a) This contract and employees working on this contract will be subject to the whistleblower rights and remedies established at 10 U.S.C. 4701 and Homeland Security Acquisition Regulation (HSAR) 3.900 (DEVIATION) through 3.905 (DEVIATION). (b) The Contractor shall inform its employees in writing, in the predominant language of the workforce, of employee whistleblower rights and protections under 10 U.S.C. 4701, as described in HSAR 3.900 (DEVIATION) through 3.905 (DEVIATION).

- **FAR 52.212-4, Contract Terms and Conditions—Commercial Products and Commercial Services (Aug 2025) (DEVIATION 25-21)**

  (a) *Definitions.* The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

  (b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—
  (1) Within a reasonable time after the defect was discovered or should have been discovered; and
  (2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;
(2) Remedy the delay as quickly as possible; and
(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment—

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.
(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.
(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount

earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.
(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—
(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);
(B) Affected contract number and delivery order number, if applicable;
(C) Affected line item or subline item, if applicable; and
(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.
(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by 33.211 if–
(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;
(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or
(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.
(v) Amounts shall be due at the earliest of the following dates:
(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor; (B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or (C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that

the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;
(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
(3) Other contract clauses incorporated in the solicitation or contract;
(4) Addenda to this solicitation or contract;
(5) Solicitation provisions incorporated in the solicitation;
(6) Other paragraphs of this clause;
(7) Other documents, exhibits, and attachments; and
(8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

- **FAR 52.217-8, Option to Extend Services (NOV 1999)**

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 day.

(End of clause)

- **FAR 52.217-9, Option to Extend the Term of the Contract (MAR 2000)**

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 10 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years or sixty (60) months.

(End of clause)

- **FAR 52.219-14 Limitations on Subcontracting (Class Deviation 22-02, Rev. 1) (JUL 2023)**

(a) This clause does not apply to the unrestricted portion of a partial set-aside. (b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that (1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and (2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract. (c) Applicability. This clause applies only to (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3); (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3); (3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15; (4) Orders expected to exceed the simplified acquisition threshold and that are (i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or (ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii); (5) Orders, regardless of dollar value, that are (i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or (ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference. (d) Independent contractors. An independent contractor shall be considered a subcontractor. (e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees to the following requirements in the performance of a contract assigned a North American Industry Classification System (NAICS) code applicable to this contract: (1) Services (except construction). It will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime

contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. (i) The following services may be excluded from the 50 percent limitation: (A) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code (562910), cloud computing services, or mass media purchases. (B) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor. (2) Supplies (other than procurement from a nonmanufacturer of such supplies). It will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract. (3) General construction. It will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded. (4) Construction by special trade contractors. It will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded. (f) The Contractor shall comply with the limitations on subcontracting as follows: (1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause.

[Contracting Officer check as appropriate.]
_X_ By the end of the base term of the contract and then by the end of each subsequent option period; or
__ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order. (g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.
(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.
(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

- **FAR 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)**

  In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332. This Statement is for Information Only:

  On March 14, 2025, President Trump issued Executive Order 14236, "Additional Rescissions of Harmful Executive Orders and Actions," (90 FR 13037), which revoked, among other items, Executive Order 14026 of April 27, 2021, "Increasing the Minimum Wage for Federal Contractors" (86 FR 22835). Pursuant to section 2(d) of Executive Order 14236, the Department of Labor is no longer enforcing Executive Order 14026 or the implementing rule (29 CFR part 23) and will take steps, including rescinding 29 CFR part 23, to implement and effectuate the revocation of Executive Order 14026.

- **FAR 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026 (OCT 2023) (Deviation 24-02)**

  (a) Definitions. As used in this clause— United States means the 50 states, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, and the outer Continental Shelf as defined in the Outer Continental Shelf Lands Act (43 U.S.C. 1331, et seq.).

  Worker – (1)(i) Means any person engaged in performing work on, or in connection with, a contract covered by Executive Order 14026, and– (A) Whose wages under such contract are governed by the Fair Labor Standards Act (29 U.S.C. chapter 8), the Service Contract Labor Standards statute (41 U.S.C. chapter 67), or the Wage Rate Requirements (Construction) statute (40 U.S.C. chapter 31, subchapter IV); (B) Other than individuals employed in a bona fide executive, administrative, or professional capacity, as those terms are defined in 29 CFR part 541; and (C) Regardless of the contractual relationship alleged to exist between the individual and the employer. (ii) Includes workers performing on, or in connection with, the contract whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c) . (iii) Also includes any person working on, or in connection with, the contract and individually registered in a bona fide apprenticeship or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship. (2)(i) A worker performs on a contract if the worker directly performs the specific services called for by the contract; and (ii) A worker performs in connection with a contract if the worker's work activities are necessary to the performance of a contract but are not the specific services called for by the contract. (b) Executive Order Minimum wage rate. (1) The Contractor shall pay to workers, while performing in the United States, and performing on, or in connection with, this contract, a

minimum hourly wage rate of $15.00 per hour beginning January 30, 2022. (2) The Contractor shall adjust the minimum wage paid, if necessary, beginning January 1, 2023, and annually thereafter, to meet the applicable annual E.O. minimum wage. The Administrator of the Department of Labor's Wage and Hour Division (the Administrator) will publish annual determinations in the Federal Register no later than 90 days before the effective date of the new E.O. minimum wage rate. The Administrator will also publish the applicable E.O. minimum wage on https://www.sam.gov (or any successor website), and a general notice on all wage determinations issued under the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, that will provide information on the E.O. minimum wage and how to obtain annual updates. The applicable published E.O. minimum wage is incorporated by reference into this contract. (3)(i) The Contractor may request a price adjustment only after the effective date of the new annual E.O. minimum wage determination. Prices will be adjusted only for increased labor costs (including subcontractor labor costs) as a result of an increase in the annual E.O. minimum wage, and for associated labor costs (including those for subcontractors). Associated labor costs shall include increases or decreases that result from changes in social security and unemployment taxes and workers' compensation insurance but will not otherwise include any amount for general and administrative costs, overhead, or profit. (ii) Subcontractors may be entitled to adjustments due to the new minimum wage, pursuant to paragraph (b)(2). Contractors shall consider any subcontractor requests for such price adjustment. (iii) The Contracting Officer will not adjust the contract price under this clause for any costs other than those identified in paragraph (b)(3)(i) of this clause and will not provide duplicate price adjustments with any price adjustment under clauses implementing the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute. (4) The Contractor warrants that the prices in this contract do not include allowance for any contingency to cover increased costs for which adjustment is provided under this clause. (5) A pay period under this clause may not be longer than semi-monthly but may be shorter to comply with any applicable law or other requirement under this contract establishing a shorter pay period. Workers shall be paid no later than one pay period following the end of the regular pay period in which such wages were earned or accrued. (6) The Contractor shall pay, unconditionally to each worker, all wages due free and clear without subsequent rebate or kickback. The Contractor may make deductions that reduce a worker's wages below the E.O. minimum wage rate only if done in accordance with 29 CFR 23.230, Deductions. (7) The Contractor shall not discharge any part of its minimum wage obligation under this clause by furnishing fringe benefits or, with respect to workers whose wages are governed by the Service Contract Labor Standards statute, the cash equivalent thereof. (8) Nothing in this clause shall excuse the Contractor from compliance with any applicable Federal or State prevailing wage law or any applicable law or municipal ordinance or any applicable contract establishing a minimum wage higher than the E.O. 14026 minimum wage. However, wage increases under such other laws or municipal ordinances are not subject to price adjustment under this subpart. (9) The Contractor shall pay the E.O. minimum wage rate whenever it is higher than any applicable collective bargaining agreement(s) wage rate. (10) The Contractor shall follow the policies and procedures in 29 CFR 23.240(b) and 23.280 for treatment of workers engaged in an occupation in which they customarily and regularly receive more than $30 a month in tips. (c)(1) This clause applies to workers as

defined in paragraph (a). As provided in that definition– (i) Workers are covered regardless of the contractual relationship alleged to exist between the contractor or subcontractor and the worker; (ii) Workers with disabilities whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c) are covered; and (iii) Workers who are registered in a bona fide apprenticeship program or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship, are covered. (2) This clause does not apply to— (i) Contracts or subcontracts to which the States of Texas, Louisiana, or Mississippi, including their agencies, are a party; (ii) Fair Labor Standards Act (FLSA)-covered individuals performing in connection with contracts covered by the E.O., i.e., those individuals who perform duties necessary to the performance of the contract, but who are not directly engaged in performing the specific work called for by the contract, and who spend less than 20 percent of their hours worked in a particular workweek performing in connection with such contracts; (iii) Individuals exempted from the minimum wage requirements of the FLSA under 29 U.S.C. 213(a) and 214(a) and (b), unless otherwise covered by the Service Contract Labor Standards statute, or the Wage Rate Requirements (Construction) statute. These individuals include but are not limited to— (A) Learners, apprentices, or messengers whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(a); (B) Students whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(b); and (C) Those employed in a bona fide executive, administrative, or professional capacity (29 U.S.C. 213(a)(1) and 29 CFR part 541).

(d) Notice. The Contractor shall notify all workers performing work on, or in connection with, this contract of the applicable E.O. minimum wage rate under this clause. With respect to workers covered by the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, the Contractor may meet this requirement by posting, in a prominent and accessible place at the worksite, the applicable wage determination under those statutes. With respect to workers whose wages are governed by the FLSA, the Contractor shall post notice, utilizing the poster provided by the Administrator, which can be obtained at www.dol.gov/agencies/whd/government-contracts, in a prominent and accessible place at the worksite. Contractors that customarily post notices to workers electronically may post the notice electronically provided the electronic posting is displayed prominently on any Web site that is maintained by the contractor, whether external or internal, and customarily used for notices to workers about terms and conditions of employment.

(e) Payroll Records. (1) The Contractor shall make and maintain records, for three years after completion of the work, containing the following information for each worker: (i) Name, address, and social security number; (ii) The worker's occupation(s) or classification(s); (iii) The rate or rates of wages paid; (iv) The number of daily and weekly hours worked by each worker; (v) Any deductions made; and (vi) Total wages paid. (2) The Contractor shall make records pursuant to paragraph (e)(1) of this clause available for inspection and transcription by authorized representatives of the Administrator. The Contractor shall also make such records available upon request of the Contracting Officer. (3) The Contractor shall make a copy of the contract available, as applicable, for

inspection or transcription by authorized representatives of the Administrator. (4) Failure to comply with this paragraph (e) shall be a violation of 29 CFR 23.260 and this contract. Upon direction of the Administrator or upon the Contracting Officer's own action, payment shall be withheld until such time as the noncompliance is corrected. (5) Nothing in this clause limits or otherwise modifies the Contractor's payroll and recordkeeping obligations, if any, under the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, the Fair Labor Standards Act, or any other applicable law.
(f) Access. The Contractor shall permit authorized representatives of the Administrator to conduct investigations, including interviewing workers at the worksite during normal working hours.
(g) Withholding. The Contracting Officer, upon his or her own action or upon written request of the Administrator, will withhold funds or cause funds to be withheld from the Contractor under this or any other Federal contract with the same Contractor, sufficient to pay workers the full amount of wages required by this clause.
(h) Disputes. Department of Labor has set forth in 29 CFR 23.510, Disputes concerning contractor compliance, the procedures for resolving disputes concerning a contractor's compliance with Department of Labor regulations at 29 CFR part 23. Such disputes shall be resolved in accordance with those procedures and not the Disputes clause of this contract. These disputes include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the Department of Labor, or the workers or their representatives.
(i) Antiretaliation. The Contractor shall not discharge or in any other manner discriminate against any worker because such worker has filed any complaint or instituted or caused to be instituted any proceeding under or related to compliance with the E.O. or this clause or has testified or is about to testify in any such proceeding.
(j) Subcontractor compliance. The Contractor is responsible for subcontractor compliance with the requirements of this clause and may be held liable for unpaid wages due subcontractor workers.
(k) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (k) in all subcontracts, regardless of dollar value, that are subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and are to be performed in whole or in part in the United States.

- **FAR 52.223-23 Sustainable Products (NOV 2025)**

(a) Definitions. As used in this clause— Sustainable products and services means: (1) Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg program#products). (2) Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (https://www.energy.gov/eere/femp/search-energy-efficient-products and https://www.energystar.gov/products?s=mega). (3) Biobased products meeting the content requirement of the USDA under the BioPreferred®

program (7 U.S.C. 8102) (7 CFR part 4270) (https://www.biopreferred.gov). (4) Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone (42 U.S.C. 7671l) (40 CFR part 82, subpart G) (https://www.epa.gov/snap). (b) Requirements. The Government has identified in the statement of work or elsewhere in the contract the sustainable products that are required during the performance of this contract. The Contractor shall ensure that it provides sustainable products as required by this contract, when the products are— (1) Delivered to the Government; (2) Furnished for use by the Government; (3) Incorporated into the construction of a public building or public work; or (c) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract.

- **FAR 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (DEVIATION 20-04, Rev 1) (APR 2020)**

  (a)(l) In accordance with 31 U.S.C. 3903 and 10 U.S.C. 2307, upon receipt of accelerated payments from the Government, the Contractor shall make accelerated payments to its small business subcontractors under this contract in accordance with the accelerated payment date established, to the maximum extent practicable and prior to when such payment is otherwise required under the applicable contract or subcontract, with a goal of 15 days after receipt of a proper invoice and all other required documentation from the small business subcontractor if a specific payment date is not established by contract. (2) The Contractor agrees to make such payments to its small business subcontractors without any further consideration from or fees charged to the subcontractor. (b) The acceleration of payments under this clause does not provide any new rights under the Prompt Payment Act. (c) Include the substance of this clause, including this paragraph (c), in all subcontracts with small business concerns, including subcontracts with small business concerns for the acquisition of commercial items.

  (End of clause)

- **FAR 52.240-91 Security Prohibitions and Exclusions. (DEVIATION 20-05) (NOV 2025)**

  (a) Definitions. As used in this clause—
  American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at https://www.sam.gov (section 1822 of Pub. L. 118- 31, 41 U.S.C. 3901 note prec.).

  Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means: (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types; (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153); (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China. Covered telecommunications equipment or services means—
(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—
(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled— (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or (ii) For reasons relating to regional stability or surreptitious listening;
(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations,

part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e)
(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use— (i) Of that equipment; or (ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;
(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but
(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—
(1) The Office of the Director of National Intelligence;
(2) The Central Intelligence Agency;
(3) The National Security Agency;
(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;
(6) The National Reconnaissance Office;
(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
(9) The Bureau of Intelligence and Research of the Department of State;
(10) The Office of Intelligence and Analysis of the Department of the Treasury;
(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community
Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources. Kaspersky Lab-covered article means any hardware, software, or service that— (1) Is developed or provided by a Kaspersky Lab-covered entity; (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity Kaspersky Lab-covered entity means— (1) Kaspersky Lab; (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky"; (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or (4) Any entity of which Kaspersky Lab has a majority ownership National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency— (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.
Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high. Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence. Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information. Source means a non-Federal supplier, or potential supplier, of products or services, at any tier. Subsidiary means an

entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation. Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service. Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)). Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)). (b) Prohibitions on providing or using specific products or services in performance of contract. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following: (1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328)); (2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91)); (3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing— (i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or (ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles. (c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities. (1) Prohibition. The Contractor is prohibited from— (i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.); (ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118- 31); and (iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31). (2) Procedures. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract. (3) Exemptions, exceptions, and waivers. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers. (d) Prohibition on using or providing specific products or services or conducting certain

transactions regardless of connection to contract (1) Certain telecommunications and video surveillance equipment, systems, or services. (i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).
(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using— (A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or (B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles. (2) Office of Foreign Assets Control Restrictions. (i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States. (ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas. (A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at https://home.treasury.gov/policy-issues/financial-sanctions/specially designated nationals-and-blocked-persons-list-sdn-human-readable-lists. (B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at https://home.treasury.gov/policy-issues/office-of foreign-assets-control sanctions-programs-and-information. (C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at https://www.trade.gov/consolidated-screening-list, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury. (3) Sudan prohibition. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110 174). (4) Iran prohibitions. (i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).
(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515). (iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).
(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $10,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the

property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)). (e) Governmentwide exclusion and removal orders. (1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows: (i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply. (ii) For all other solicitations and contracts, DHS FASCSA orders apply. (2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at https://www.sam.gov to locate applicable FASCSA orders. (3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract. (4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)) (f) Reasonable inquiry. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit. (g) Removal of prohibited products and services. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits. (h) General report. (1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours: (i) Contract number and order number, if applicable; (ii) The specific prohibition the product or service is not complying with; (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable); (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product)); (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service; (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver); (vii) Whether alternative products or services are available that would comply with the prohibition; (viii) If the product or service is related to item maintenance, include the following information on the item being maintained (A) Brand; (B) Model number, OEM number, manufacturer part number, or wholesaler number; and (C) Item description, as applicable. (ix) Any

readily available information about mitigation actions implemented or recommended. (2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:
(i) In the event the Contractor identifies covered article provided to the Government during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report, in writing, via email, to the Contracting Officer, Contracting Officer's Representative, and the Enterprise Security Operations Center (SOC) at NDAA_Incidents@hq.dhs.gov, with required information in the body of the email. In the case of the Department of Defense, the Contractor shall report to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Enterprise SOC, Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) and Contracting Officer's Representative(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at https://dibnet.dod.mil. (ii) For all other contracting offices, the Contractor shall report to the Contracting Officer. (iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. (3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information. (4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification. (i) New FASCSA orders report. (1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause. (2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity’s possession but does not need to include an internal or third-party audit. (3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order: (i) Contract number and order number, if applicable; (ii) Name of the covered article or source subject to a FASCSA order; (iii) The specific FASCSA order the product or service does not comply with; (iv) The elements of (h)(1)(iii) through (ix) of this clause. (j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding

subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

- **FAR 52.252-2, Clauses Incorporated by Reference**

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): https://www.acquisition.gov/

(End of clause)

- **FAR 52.252-6, Authorized Deviations in Clauses (NOV 2020)**
(a) The use in this contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by "(DEVIATION)" after the date of the clause.

(b) The use of any Homeland Security Acquisition Regulation (48 CFR Chapter 30) clause with an authorized deviation is indicated by "(DEVIATION)" after the name of the regulation.

(End of clause)

- **HSAR 3052.212-70 Contract terms and Conditions Applicable to DHS Acquisition of Commercial Items (JUL 2023)**

The Contractor agrees to comply with any provision or clause that is incorporated herein by reference to implement agency policy applicable to acquisition of commercial items or components. The provision or clause in effect based on the applicable regulation cited on the date the solicitation is issued applies unless otherwise stated herein.

The following provisions and clauses are incorporated by reference:

(a) Provisions
[ ] 3052.216-70 Evaluation of Offers Subject to An Economic Price Adjustment Clause.
[ ] 3052.219-72 Evaluation of Prime Contractor Participation in the DHS Mentor Protégé Program.
[ ] 3052.247-70 F.o.b. Origin Information.
[ ] Alternate I
[ ] Alternate II
[ ] 3052.247-71 F.o.b. Origin Only.
[ ] 3052.247-72 F.o.b. Destination Only.

(b) Clauses
[ ] 3052.203-70 Instructions for Contractor Disclosure of Violations.
[X] 3052.204-71 Contractor Employee Access.
[ ] Alternate I
[ ] Alternate II
[ ] 3052.204-72 Safeguarding of Controlled Unclassified Information.
[ ] 3052.205-70 Advertisements, Publicizing Awards, and Releases.
[X] 3052.209-70 Prohibition on Contracts with Corporate Expatriates.
[ ] 3052.215-70 Key personnel or facilities.
[ ] 3052.216-71 Determination of award fee.
[ ] 3052.216-72 Performance evaluation plan.
[ ] 3052.216-73 Distribution of award fee.
[ ] 3052.217-91 Performance (USCG).
[ ] 3052.217-92 Inspection and manner of doing work (USCG).
[ ] 3052.217-93 Subcontracts (USCG).
[ ] 3052.217-94 Lay days (USCG).
[ ] 3052.217-95 Liability and insurance (USCG).
[ ] 3052.217-96 Title (USCG).
[ ] 3052.217-97 Discharge of liens (USCG).
[ ] 3052.217-98 Delays (USCG).
[ ] 3052.217-100 Guarantee (USCG).
[ ] 3052.219-71 DHS Mentor Protégé Program.
[X] 3052.222-70 Strikes or picketing affecting timely completion of the contract work.
[X] 3052.222-71 Strikes or picketing affecting access to a DHS facility.
[X] 3052.222-90 Local Hire Provision (USCG).
[X] 3052.223-70 Removal or disposal of hazardous substances—applicable licenses and permits.
[X] 3052.223-90 Accident and Fire Reporting (USCG).
[X] 3052.228-70 Insurance.
[ ] 3052.228-90 National Maritime Center (NMC) trust fund contribution (USCG).
[ ] 3052.236-70 Special provisions for work at computer storage facilities.
[X] 3052.242-72 Contracting Officer's Representative (COR).
[ ] 3052.247-70 F.o.b. Origin Instructions.
[ ] 3052.247-72 F.o.b. Destination Only.
[X] 3052.249-90 Contract Termination (USCG).

(End of clause)

- **HSAR 3052.228-70, Insurance (DEC 2003)**

  In accordance with the clause entitled “Insurance - Work on a Government Installation" in Section I, insurance of the following kinds and minimum amounts shall be provided and maintained during the period of performance of this contract:

  (a) Worker's compensation and employer's liability. The contractor shall, as a minimum, meet the requirements specified at (FAR) 48 CFR 28.307-2(a).

(b) General liability. The contractor shall, as a minimum, meet the requirements specified at (FAR) 48 CFR 28.307-2(b).

(c) Automobile liability. The contractor shall, as a minimum, meet the requirements specified at (FAR) 48 CFR 28.307-2(c).

(End of clause)

- **HSAR 3052.240-71 Contractor Employee Access (JUL 2023) (HSAR DEVIATION 25-12) (NOV 2025)**

(a) Controlled Unclassified Information (CUI) is any information the Government creates or possesses, or an entity creates or possesses for or on behalf of the Government (other than classified information) that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls. This definition includes the following CUI categories and subcategories of information: (1) Chemical-terrorism Vulnerability Information (CVI) as defined in 6 CFR part 27, "Chemical Facility Anti-Terrorism Standards," and as further described in supplementary guidance issued by an authorized official of the Department of Homeland Security (including the Revised Procedural Manual "Safeguarding Information Designated as Chemical-Terrorism Vulnerability Information" dated September 2008); (2) Protected Critical Infrastructure Information (PCII) as set out in the Critical Infrastructure Information Act of 2002 (title XXII, subtitle B of the Homeland Security Act of 2002 as amended through Pub. L. 116–283), PCII's implementing regulations (6 CFR part 29), the PCII Program Procedures Manual, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security, the PCII Program Manager, or a PCII Program Manager Designee; (3) Sensitive Security Information (SSI) as defined in 49 CFR part 1520, "Protection of Sensitive Security Information," as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the Assistant Secretary for the Transportation Security Administration or designee), including Department of Homeland Security MD 11056.1, "Sensitive Security Information (SSI)" and, within the Transportation Security Administration, TSA MD 2810.1, "SSI Program"; (4) Homeland Security Agreement Information means information the Department of Homeland Security receives pursuant to an agreement with State, local, Tribal, territorial, or private sector partners that is required to be protected by that agreement. The Department receives this information in furtherance of the missions of the Department, including, but not limited to, support of the Fusion Center Initiative and activities for cyber information sharing consistent with the Cybersecurity Information Sharing Act of 2015; (5) Homeland Security Enforcement Information means unclassified information of a sensitive nature lawfully created, possessed, or transmitted by the Department of Homeland Security in furtherance of its immigration, customs, and other civil and criminal enforcement missions, the unauthorized disclosure of which could adversely impact the mission of the Department; (6) International Agreement Information means information the Department of Homeland Security receives that is required to be

protected by an information sharing agreement or arrangement with a foreign government, an international organization of governments or any element thereof, an international or foreign public or judicial body, or an international or foreign private or nongovernmental organization; (7) Information Systems Vulnerability Information (ISVI) means: (i) Department of Homeland Security information technology (IT) systems data revealing infrastructure used for servers, desktops, and networks; applications name, version, and release; switching, router, and gateway information; interconnections and access methods; and mission or business use/need. Examples of ISVI are systems inventories and enterprise architecture models. Information pertaining to national security systems and eligible for classification under Executive Order 13526 will be classified as appropriate; and/or (ii) Information regarding developing or current technology, the release of which could hinder the objectives of the Department, compromise a technological advantage or countermeasure, cause a denial of service, or provide an adversary with sufficient information to clone, counterfeit, or circumvent a process or system; (8) Operations Security Information means Department of Homeland Security information that could be collected, analyzed, and exploited by a foreign adversary to identify intentions, capabilities, operations, and vulnerabilities that threaten operational security for the missions of the Department; (9) Personnel Security Information means information that could result in physical risk to Department of Homeland Security personnel or other individuals whom the Department is responsible for protecting; (10) Physical Security Information means reviews or reports illustrating or disclosing facility infrastructure or security vulnerabilities related to the protection of Federal buildings, grounds, or property. For example, threat assessments, system security plans, contingency plans, risk management plans, business impact analysis studies, and certification and accreditation documentation; (11) Privacy Information includes both Personally Identifiable Information (PII) and Sensitive Personally Identifiable Information (SPII). PII refers to information that can be used to distinguish or trace an individual's identity, either alone, or when combined with other information that is linked or linkable to a specific individual; and SPII is a subset of PII that if lost, compromised, or disclosed without authorization could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual. To determine whether information is PII, DHS will perform an assessment of the specific risk that an individual can be identified using the information with other information that is linked or linkable to the individual. In performing this assessment, it is important to recognize that information that is not PII can become PII whenever additional information becomes available, in any medium or from any source, that would make it possible to identify an individual. Certain data elements are particularly sensitive and may alone present an increased risk of harm to the individual. (i) Examples of stand-alone PII that are particularly sensitive include: Social Security numbers (SSNs), driver's license or State identification numbers, Alien Registration Numbers (A numbers), financial account numbers, and biometric identifiers. (ii) Multiple pieces of information may present an increased risk of harm to the individual when combined, posing an increased risk of harm to the individual. SPII may also consist of any grouping of information that contains an individual's name or other unique identifier plus one or more of the following elements: (A) Truncated SSN (such as last 4 digits); (B) Date of birth (month, day, and year); (C) Citizenship or immigration status; (D) Ethnic or religious affiliation; (E) Sexual orientation; (F) Criminal history; (G)

Medical information; and (H) System authentication information, such as mother's birth name, account passwords, or personal identification numbers (PINs). (iii) Other PII that may present an increased risk of harm to the individual depending on its context, such as a list of employees and their performance ratings or an unlisted home address or phone number. The context includes the purpose for which the PII was collected, maintained, and used. This assessment is critical because the same information in different contexts can reveal additional information about the impacted individual. (b) Information Resources means information and related resources, such as personnel, equipment, funds, and information technology. (c) Contractor employees working on this contract must complete such forms as may be necessary for security or other reasons, including the conduct of background investigations to determine suitability. Completed forms shall be submitted as directed by the Contracting Officer. Upon the Contracting Officer's request, the Contractor's employees shall be fingerprinted or subject to other investigations as required. All Contractor employees requiring recurring access to government facilities or access to CUI or information resources are required to have a favorably adjudicated background investigation prior to commencing work on this contract unless this requirement is waived under Departmental procedures. (d) The Contracting Officer may require the Contractor to prohibit individuals from working on the contract if the Government deems their initial or continued employment contrary to the public interest for any reason, including, but not limited to, carelessness, insubordination, incompetence, or security concerns. (e) Work under this contract may involve access to CUI. The Contractor shall access and use CUI only for the purpose of furnishing advice or assistance directly to the Government in support of the Government's activities, and shall not disclose, orally or in writing, CUI for any other purpose to any person unless authorized in writing by the Contracting Officer. For those Contractor employees authorized to access CUI, the Contractor shall ensure that these persons receive initial and refresher training concerning the protection and disclosure of CUI. Initial training shall be completed within 60 days of contract award and refresher training shall be completed every 2 years thereafter. (f) The Contractor shall include this clause in all subcontracts at any tier where the subcontractor may have access to government facilities, CUI, or information resources.

(End of clause)

- **HSAM 3032.702-70 Incremental Funding Requirements**

(a) Contract line items are incrementally or fully funded as shown in the below table. The sum of $_____ is available for payment and obligated on this contract for the CLINs in the table below:

CLIN	CLIN Price	Amount Currently Funded	Funds Required for Full Funding

(b) For items identified in the chart above as not fully funded, the contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement of authorized termination costs in the event of termination of those items for the Government's convenience, does not exceed the total amount currently allotted to the items not fully funded under the contract. The contractor is not authorized to continue work on those item(s) beyond that point.

(c) The Government may add funds to this contract as funds become available. There is no fixed schedule for providing additional funds.

(d) If the additional funds are less than the amount required for full performance of this contract (or order), the parties will agree as to the period of performance covered by the funds. The modification adding funds that do fully fund the contract (or order) shall retain the language of this section, appropriately updating the data in paragraph (a).

(e) The contractor will notify the contracting officer in writing at least thirty (or insert ninety or sixty) days prior to the date when, in the contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then obligated on the contract for performance of the applicable items. The notification will state the estimated date when that point will be reached. If after such notification additional funds are not obligated by the date identified in the contractor's notification, or by an agreed substitute date, the contracting officer will terminate any item(s) for which additional funds have not been provided, pursuant to the clause of this contract authorizing termination for the convenience of the Government, such as the clause entitled "Termination for Convenience of the Government" or paragraph (1) entitled “Termination for the Government's Convenience” of the clause at FAR 52.212-4, “Commercial Terms and Conditions - Commercial Products and Commercial Services.”

(f) In the event of incrementally funded line items, the total amount payable by the Government includes allowable costs, profit, and estimated/negotiated termination settlement costs for those items. The Government will not be obligated in any event to reimburse the contractor in excess of the amount obligated on the line items of the contract regardless of anything to the contrary in any other clause.

(g) The contractor agrees that, even though such data are not normally available to the Government, in the event the Government must terminate for its convenience, the

contractor shall provide cost data as defined in FAR 15.402 regarding its performance under the contract to support its termination settlement proposal.

(h) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a).

(i) The termination provisions of paragraphs (e) through (h) do not limit the rights of the Government under the clause entitled “Default” or “Termination for Cause.” The provisions of this section are limited to the work and availability of funds for the contract line items set forth in paragraph (a). This language no longer applies once the contract is fully funded.

(j) Nothing in this section affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled “Termination for Convenience of the Government” or paragraph (1) entitled “Termination for the Government's Convenience” of the clause at FAR 52.212-4, “Commercial Terms and Conditions-Commercial Products and Commercial Services.”

(k) Nothing herein shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(l) Upon receipt of the contractor's notice under paragraph (e) of the Incremental Funding Requirements contract language above, the contracting officer shall promptly provide written notice to the contractor that the Government is,--

(1) Allotting additional funds for continued performance and increasing the Government's limitation of obligation in a specified amount;

(2) Terminating the contract; or

(3) Considering whether to allot additional funds; and

(A) The contractor is entitled by the contract terms to stop work when the Government's limitation of obligation is reached; and

(B) Any costs expended beyond the Government's limitation of obligation are at the contractor's risk.

(m) If the contracting officer is notified that the contract will receive no further funds by the date identified by the contractor, the contracting officer shall,--

(1) Promptly give the contractor written notice of the Government's decision and, terminate for the convenience of the Government; or

(2) If the contracting officer has documented reason to believe that funds will be received at a future date, negotiate a mutually acceptable funding schedule.

SECTION 7: ELECTRONIC INVOICING

In conjunction with the subject award, proper invoices will be submitted through the Invoice Processing Platform (IPP) at https://www.ipp.gov/. IPP is a secure web-based electronic invoicing system provided by the U.S. Department of the Treasury's Bureau of the Fiscal Service in partnership with the Federal Reserve Bank of St. Louis (FRSTL). IPP is available at no cost to any commercial vendor or independent contractor doing business with a participating government agency.

Actions to take:

1) If your company is already registered to use IPP, no action is required.

2) If you are NOT already enrolled in IPP: The point of contact provided in your SAM.gov registration will receive two emails from ipp.noreply@mail.eroc.twai.gov. Please note that emails from this email address may filter into your spam or junk folder:

    a. The first email will have the IPP Logon ID and a link to the IPP application

    b. A second email, which will be sent within 24 hours of the first email, contains a temporary password.

Once your contact receives these emails, please ensure they log into IPP and complete the registration process.

Once registered to use IPP, your company may submit invoices electronically, receive email notifications when requests are paid, view payment history, and access remittance downloads. The email notification of payment is sent when a payment is distributed to your bank account and may include the following payment information: Date of payment, dollar amount, invoice number, paying agency, payee name, and ACH trace number.

Vendor training materials, including a first time login tutorial, are available on the https:www.ipp.gov/ website. Once you have logged into the IPP application, you will have access to user guides that provide step-by-step instructions for all IPP capabilities, ranging from creating and submitting an invoice to setting up email notifications. Live webinars are held monthly and provide a great opportunity to learn the basic of the system and to call in and ask the IPP team questions about the IPP application.

IPP customer Support is available to assist uses of the system and can answer your questions related to accessing IPP or completing the registration process:

Toll-free number: 866-973-3131

Email address: IPPCustomerSupport@fiscal.treasury.gov

Hours of operation: Monday through Friday (excluding bank holidays) 08:00 am – 06:00 pm ET

SECTION 8: SOLICITATION ATTACHMENTS

- Attachment 1: Support Buildings Container Service List
- Attachment 2: Residential Housing Container Service List
- Attachment 3: Maps of Base Cape Cod
- Attachment 4: Estimated Monthly Tonnage
- Attachment 5: Performance Requirements Summary
- Attachment 6: Quality Assurance Surveillance Plan
- Attachment 7: Contract Discrepancy Report
- Attachment 8: NCIC Background Check Form
- Attachment 9: DOL Wage Determination No. 2015-4045, Revision 37
- Attachment 10: Schedule B_BCC & Harwich Refuse & Recycling Services